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costs, attorney's fees, and court costs incurred in enforcing our rights under this agreement.

Consumer Credit Card Customer Agreement & Disclosure Statement, ¶21, Supporting Declaration, **Exhibit B**.

The Court finds that the parties' contract contained an attorneys' fees clause, entitling Plaintiff to recover attorneys' fees as the prevailing party in this action.

A party seeking an award of attorneys' fees as a prevailing party must present evidence of the time spent and the hourly rate of each attorney. *Copenbarger v. Morris Cerullo World Evangelism, Inc.* (2018) 29 Cal.App.5th 1, 14 ("*Copenbarger*"); see CJER Civ. Pro.—Trial, § 16.82. This party has the burden to show the reasonableness of the attorneys' fees sought. *Copenbarger, supra*, 29 Cal.App.5th at 14 (party seeking fees bears the burden of showing that the requested fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount).

The evidence proffered by Plaintiff fails to carry its burden of proof as to the reasonableness of the attorneys' fees sought.

The Supporting Declaration contains only a cursory reference to Plaintiff's counsel's hourly rate and a total figure of \$800:

4. Plaintiff's counsel charges a reasonable hourly rate of \$200.00 per hour which is customary and very reasonable among attorneys practicing law in Southern California. Thus, Four multiplied by \$200.00 equals \$800.00, which Plaintiff requests as reasonable attorney fees

See Supporting Declaration, ¶4.

The reference to "Four" presumably refers to four (4) hours of attorney work incurred in connection with the litigation, although the declaration does not actually state as much. Even granting a liberal reading of the Supporting Declaration, however, the declaration does not even purport to describe the nature and extent of such legal services, even in broad terms. Nor does the declaration attach any billing statements, invoices or other time summaries, as is typical in such motions.

The Court cannot and does not conclude that the claimed attorneys' fees were reasonable and necessary to this litigation given the paucity of evidence.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Fees is DENIED.
2. The Court shall enter the order after hearing.

3. 9:00 AM CASE NUMBER: L24-00971  
CASE NAME: DISCOVER BANK VS. TRISHA ICKES  
\*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO CCP 664.6  
FILED BY: DISCOVER BANK  
**\*TENTATIVE RULING:\***

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on October 21, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on January 6, 2026.

#### Background

The parties entered into that certain settlement agreement filed on October 25, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Trisha Ickes ("Defendant") in the amount of \$3,612.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed October 21, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$3,612.34 **plus costs**, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains \$2,227.34 due and owing, plus costs of \$297.61. See Supporting Declaration, ¶7; see also Memorandum of Costs filed October 21, 2025.

#### Analysis

Defendant was duly served with the motion. The motion is unopposed.

#### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,227.34, plus costs of \$297.61, for a total judgment of \$2,524.95.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.